

23GDCV00361 23GDCV00361

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-06

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Case Number: 23GDCV00361 Hearing Date: August 6, 2026 Dept: E

The Court's tentative is to

DENY the motion for attorney's fees for two reasons:

First, the Court agrees with

Defendant that the motion appears to be untimely under *Hatlevig v. General*

Motors LLC (2006) 118 Cal.App.5th 644 and CRC 3.1702. The Court would

ask Plaintiff: If ten months is not too long, what is? One year? Two years?

Five? There does not appear to be any logical deadline for the filing of

a motion for attorney's fees in the procedural posture the Court is presented

with here if the deadlines set out in CRC 3.1702 and discussed in *Hatlevig* do

not apply.

It appears that Plaintiff's

counsel simply lost track of this motion, and forgot about it for approximately

ten months. None of the declaration submitted by Plaintiff's counsel

explain why failing to file the motion for ten months was excusable neglect.

Neither Mr. Jacobson nor Mr. Castruita explain what was happening for those ten

months or how or why this case came back to life ten months after being

dismissed without prejudice. Surely there must be some reason that could

have been offered by plaintiff's counsel to explain the ten-month gap?

That no substantive explanation for the ten-month gap is offered appears to

speak volumes, in the Court's view.

Second, Plaintiff seeks

nearly one hundred thousand dollars in attorney's fees in a case that did not

go to trial and that apparently 14 attorneys at two law firms worked on.

There appears to have been significant duplication of work and excessive billing,

in the Court's review. Where a fee request appears unreasonably inflated, the

Court has the discretion to deny the request entirely. (See Chavez v. City of Los Angeles (2010) 47 Cal.4th 970, 975.)